

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YENNIE SOLHEIM FULLER,

Petitioner

VS.

XAVIER R. FULLER,

Respondent

) Case Number: FDI-19-791885

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yennie Solheim (Mother) and Respondent Xavier Fuller (Father) were married in 2013 and separated in 2019. They have two minor children together, Chloe (DOB 7/8/2016, age 9) and Heidi (DOB 5/20/2019, almost 7). A Judgment of Dissolution was filed 7/8/2022. The Judgment included the parties' agreement to share joint legal and joint physical custody of the children, with Father to have the children overnight every Wednesday to Thursday and Sunday to Monday, certain holidays, and daily FaceTime calls.
- 2) On 11/10/2024, Mother filed an ex parte request seeking temporary sole legal and physical custody based on Father's paranoid and delusional behavior. She asked that all visits be suspended or supervised pending Father's undergoing a psychological evaluation. The Court maintained the joint legal custody order but granted temporary sole physical custody to Mother with a step-up from professionally supervised visits to unsupervised visits for Father. On 6/11/2025, the Court ordered the parties to undergo a custody evaluation.

- 1 3) At a 9/16/2025 review hearing, the Court maintained joint legal custody and sole physical
2 custody to Mother and issued orders relating to the custody evaluation as well as a detailed
3 parenting time schedule for Father.
- 4 4) On 4/17/2026, Mother filed an ex parte request seeking temporary sole legal and sole physical
5 custody of both children based on statements the children made indicating Father had sexually
6 abused them. Mother asked that Father's visits—i.e., Wednesdays from 1:30pm to 4:30pm and
7 Saturdays from 10:30am to 5:30pm and Facetime calls on Tuesdays and Thursdays at 6:30pm—
8 be suspended pending an investigation by Child Protective Services and the San Francisco Police
9 Department. This Court granted the ex parte request pending a hearing on shortened time on
10 5/12/2026.
- 11 5) On 5/7/2026, Father filed a response to the ex parte request seeking restoration of his parenting
12 time, a review hearing within 30 days to monitor the status of the criminal and CPS investigation
13 and the custody evaluation, a written status update from Mother, law enforcement, CPS, and the
14 child custody evaluator, and an order requiring Mother to show cause why sanctions should not
15 be imposed under Family Code section 271 for her "repeated no-notice ex parte filings that have
16 disrupted Father's parenting time without evidentiary support."
- 17 6) On 5/11/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO)
18 seeking protection from Father for herself and on behalf of their children. The Court issued a
19 temporary restraining order, which includes an order temporarily suspending Father's parenting
20 time, consistent with the Court's 4/17/2026 ex parte order. The matter is scheduled to be heard on
21 5/27/2026 at 8:30am.

22 **B. Findings and Orders**

- 23 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
24 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
25 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
26 children is the United States.
- 27 2) In light of the pending investigations relating to the sexual abuse allegations and the pending
28 DVRO request, the Court hereby continues this matter to **Tuesday, 6/30/2026 at 9:00 AM in**
29 **Dept. 404**. At least 10 days before the continued hearing date, the parties shall file and serve

1 update declarations informing the Court of the status of any CPS and/or SFPD investigation and
2 any updates relating to custody and parenting time. At least 10 days before the review hearing,
3 the child custody evaluator is ordered to file and serve an update declaration informing the Court
4 of the status of the child custody evaluation and its estimated completion date.

- 5 3) The Court finds it is in the children's best interest to maintain the current temporary order for sole
6 legal and physical custody to Mother, with no parenting time for Father, pending written
7 agreement by the parties or further Court order to be made at the continued hearing or at the
8 DVRO hearing (currently scheduled for 5/27/2026).
- 9 4) Father's request relating to sanctions under Family Code section 271 is denied.
- 10 5) Mother's attorney shall prepare the Findings and Order After Hearing.
- 11 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON SIU,

Petitioner

VS.

ANDREW O'CONNOR,

Respondent

) Case Number: FDI-22-797259

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER ENFORCEMENT OF TESLA PROVISION OF MSA/JUDGMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Allison Siu and Respondent Andrew O'Connor. The parties married on 7/30/2019 and they agree their date of separation was on 5/7/2022, for a marriage of 2 years and 8 months. The parties have no minor children. Petitioner is represented by attorney Josie Zimmermann. Respondent is self-represented, although the Court notes that attorney Kent Kirmaci filed a noticed of Limited Scope Representation on 2/26/2026 stating Mr. Kirmaci would represent Respondent at the 3/10/2026 hearing (which was continued to 5/7/2026 on the Court's own motion).
- 2) On 7/27/2023, the Court entered a stipulated Judgment which incorporated a Marital Settlement Agreement signed by the parties in May 2023. The MSA incorporated into the Judgment contains the following relevant provisions:
 - a. Section III(a)(ii)(1): "The parties have community property which is divided as followed:.. Petitioner is awarded the following assets... 2019 Tesla Model 3 (VIN ending in ***9939), ref. Section IV 'Other Stipulations and Orders' for more info..."

1 b. Section IV: “Under Petitioner and Respondent’s agreement, Petitioner agrees to send (1)
2 Certificate of Title and (2) State DMV Registration annually (1x per year) in perpetuity to
3 show ownership has not changed for the Tesla Model 3 (VIN: ...9939). If Petitioner
4 decides to sell the 2019 Tesla Model 3, Respondent is entitled to the first right to buy the
5 2019 Tesla Model 3 (VIN: ...9939) at fair market value based on Kelly Blue Book value.
6 If the Petitioner sells the 2019 Tesla Model 3 without honoring the Respondent’s first
7 right to buy will result in a reimbursement of \$50,000 to Respondent. If Tesla, Inc.
8 releases commercially viable, SAE Level 5, full self-driving (FSD), software to the
9 public that does not require human intervention, the ownership of the 2019 Tesla Model 3
10 (VIN: ...9939) will transfer from the Petitioner to a newly formed LLC. The
11 Shareholders of the newly formed LLC will be both the Petitioner and Respondent with
12 equal equity (50%-50%). The revenue, less operating expenses (excluding shareholder
13 salary) will generate the net operating income, which will be split equally among its
14 Shareholders on a monthly basis.”

15 2) Now on for hearing is Respondent’s Request for Order filed 10/31/2025. Respondent asks the
16 Court to “enforce the \$50,000 clause in the Judgment.” Respondent outlines the following
17 timeline of events and arguments in his Request for Order:

- 18 a. May 2017 – January 2022 – Respondent was employed at Tesla. Respondent states that
19 during his employment with Tesla he became intimately aware of the future value tied to
20 vehicles (like the Tesla Model 3) equipped with Full Self-Driving capability.
- 21 b. 4/22/2019 – Tesla hosts an investor presentation dubbed “Tesla Autonomy Day” to
22 discuss the future of Tesla vehicles and their autonomous driving features. Executives
23 “outline how all Model 3s produced starting in April 2019 had the hardware capable of
24 Full Self Driving.” Tesla executives project that a single vehicle could generate \$30,000
25 annually in gross profit once deployed on the Robotaxi network (similar to Waymo).
- 26 c. 6/19/2019 – Respondent purchases a brand new 2019 Tesla Model 3 with co-signer Frank
27 O’Connor. This occurs before the parties’ date of marriage. Respondent states, “The
28 vehicle cost \$35,000, the autopilot software cost \$10,000 and the state taxes and fees cost
29 \$5,000.”

- 1 d. 7/30/2019 – Petitioner and Respondent marry.
- 2 e. 6/9/2020 – Respondent “paid off the vehicle loan.”
- 3 f. March 2022 – Petitioner requests a divorce.
- 4 g. 2/2/2023 – Parties “come up with a Marriage Settlement Agreement in a Google
- 5 document that outlines how assets are divided between both parties. The text from that
- 6 signed agreement state the economic and future value of the Tesla Model 3.” The Court
- 7 has reviewed the document referenced by Respondent. It is a Marital Settlement
- 8 Agreement signed by both parties on 2/2/2023. The Court notes that this version of the
- 9 MSA (which the Court will label the “February 2023 MSA”) is not the same version of
- 10 the MSA that was incorporated into the Judgment. The February 2023 MSA includes the
- 11 following language: “As of August 21, 2022, the vehicle had 75,891 miles on the
- 12 odometer and a Kelly Blue Book value of \$33,665. This \$33,665 would be an example of
- 13 the purchase price Andrew would pay Allison if she decided to sell the vehicle,
- 14 depending upon the conditions listed below numerically.” The Court notes that these
- 15 “conditions” include Respondent’s ability to inspect the vehicle, test drive it, take into
- 16 account any necessary repairs; a timeline for Respondent to obtain financing for the
- 17 purchase; and a reduction in purchase price if the vehicle “requires a re-purchase of the
- 18 software package” (which has a cost of \$12,000 “as of August 22, 2022). The version of
- 19 the MSA that was incorporated into the Judgment was signed by both parties in May
- 20 2023 (which the Court will label the “May 2023 MSA”) did not include the terms recited
- 21 here.
- 22 h. 4/5/2023 – Per the parties’ settlement agreement, the Tesla Model 3 is transferred from
- 23 Respondent to Petitioner “with a value of \$50,000 as written on the Certificate of Title.”
- 24 Respondent states Petitioner “gained \$50,000 on this date in the form of a vehicle with
- 25 future value.”
- 26 i. 7/25/2023 – The Judgment is entered. Respondent states the \$50,000 clause was included
- 27 to protect his interest in the event the vehicle was ever sold, ensuring he would not lose
- 28 the present and future value tied to the Tesla Model 3 and its anticipated role in the
- 29 Robotaxi network.

- 1 j. 5/24/2024 – Petitioner is involved in a car accident but does not tell Respondent
- 2 k. 5/16/2025 – Petitioner is involved in a second car accident.
- 3 l. 6/17/2025 – Petitioner informs Respondent about the accident and indicated she was
- 4 working with insurance to fix the issue. Respondent states the tone and words of the
- 5 conversation led him to believe Petitioner still intended to honor their agreement.
- 6 m. 6/22/2025 – Respondent states, “@Tesla_AI Robotaxi officially launched to the public.”
- 7 Respondent states this satisfied the release of commercially viable, SAE level 5, full self-
- 8 driving (FSD) software to the public, which required moving ownership of the vehicle to
- 9 a joint LLC.
- 10 n. 6/23/2025 – Petitioner claims the Certificate of Title was signed over to the insurance
- 11 company for \$36,000. Respondent states this constituted a breach of the parties’
- 12 agreement requiring Petitioner to give Respondent the first right to purchase the vehicle.
- 13 o. 6/26/2025 – A CARFAX report (attached as Exhibit E) to Respondent’s declaration
- 14 states: “Salvage Title / Certificate Issued.”
- 15 p. 7/12/2025 – Respondent calls Petitioner who tells Respondent that insurance paid out
- 16 \$36,000 for the damaged vehicle and she bought another Tesla with the proceeds.
- 17 Respondent asks Petitioner if the new Tesla will be put under a newly formed LLC.
- 18 Petitioner states the new Tesla is under a new VIN number and so she is not obligated to
- 19 do so.
- 20 q. 8/18/2025 – Respondent sends Petitioner a demand letter offering for Petitioner to buy
- 21 out Respondent’s stake in the vehicle.
- 22 r. 8/29/2025 – The parties have a phone call. Petitioner indicates she “does not have to
- 23 honor their Judgment.” Petitioner also states that she does not want to have an LLC
- 24 anymore. Respondent writes in his declaration, “I agree a jointly owned LLC may have
- 25 made sense in 2023, but it no longer makes sense in 2025.”
- 26 3) On 12/31/2025, Petitioner filed a Responsive Declaration asking the Court to deny Respondent’s
- 27 request to enforce the \$50,000 provision and find there was no breach of the Judgment terms.
- 28 Petitioner states she was involved in a car accident in May of 2025 and the other driver was at
- 29 fault. Petitioner states she worked with her insurance company and a mechanic, believing the

1 damage could be repaired and insurance would cover it. However, the insurance company
2 deemed the car a total loss and Petitioner was given options how to move forward with a salvage
3 title. Petitioner “chose to take the payout since either way the car was now salvaged and I needed
4 to purchase a new vehicle.” Petitioner states the parties’ Marital Settlement Agreement “did not
5 lay out what I was supposed to do if the car was totaled.” Petitioner states, “My understanding of
6 the situation is that it was a forced sale, in which I could not actually set the terms in any
7 meaningful way.” Regarding Respondent’s claim that Petitioner breached the parties’ agreement
8 by failing to create an LLC and transfer title of the Tesla to the LLC, Petitioner states the only
9 evidence Respondent provides that Tesla Model 3s have Full Self Driving capability is a “tweet
10 from June about a robotaxi launching in Austin.” Petitioner states, “My own research into the
11 situation shows that Tesla is doing limited releases of Full Self Driving with cars the company
12 owns but has continued to push out the release to privately owned cars. If Respondent cannot
13 support this contention with any more evidence than one 6-month-old tweet that references a city
14 neither of us live in, I do not think that is adequate proof of any breach on my part.”

15 4) Respondent’s 10/31/2025 Request for Order was originally set for hearing on 1/13/2026.

16 However, due to a non-stipulation to a Judge Pro Tem hearing the matter, the hearing was
17 continued to 3/10/2026.

18 5) On 1/16/2026, Petitioner filed a Memorandum of Points and Authorities. Petitioner argues that
19 because she was “in a situation that was not contemplated by the Agreement, she was not ruled by
20 the provisions therein and cannot have violated them.” Petitioner further argues that Respondent
21 has not proven that the clause requiring her to transfer the Tesla to an LLC has been triggered
22 because there is nothing to show that “Tesla robotaxi” is the same thing as Full Self Driving,
23 there is no evidence of this feature being released in California, and there is no evidence that
24 Tesla robotaxi actually launched in Austin “such as an official notice to owners, or a press release
25 from the company.” Petitioner also states that even if the provision had been triggered, she has no
26 duty to transfer her new Tesla into the LLC. Petitioner states, “The MSA is clear that the vehicle
27 to be transferred is the 2019 Tesla Model 3, with the VIN listed after every mention of the car. To
28 the extent Andrew is seeking this relief, it is inappropriate under the MSA.” Petitioner further
29 argues that the insurance company’s determination that the Tesla was totaled functioned like a

1 condemnation of property and she was forced to transfer title of the vehicle to the insurance
2 company. Petitioner states she “did not hold the vehicle out for sale and bypass Andrew’s right to
3 purchase it first. There was no intent to sell the car, and as such, the Right of First Refusal was
4 not triggered. Because the right was not triggered, it was also not violated.”

5 6) On 2/26/2026, Respondent filed a Supplemental Declaration. Respondent states, “In California,
6 ownership changes when the Certificate of Title changes. It changed to the insurance company
7 with the transfer of Title from one party to another. Allison received money from the insurance
8 company. This constitutes a sale.” Respondent also states he was not given an opportunity to
9 inspect the vehicle and reduce the purchase price due to any necessary repairs. Respondent states,
10 “In the weekend of July 26-27, 2025 Tesla launched a Robotaxi service in the San Francisco Bay
11 Area...” Respondent argues that the MSA does not condition the transfer-to-LLC or revenue-
12 sharing provision on the continued physical operability of the specific vehicle, but rather on the
13 release by Tesla, Inc. of commercially viable, SAE Level 5 full self-driving software to the
14 public.” Respondent includes a link of the Tesla Q4-2025 investor call wherein Respondent
15 quotes CEO Elon Musk as stating, “We expect to have fully autonomous vehicles in, you know
16 probably, I don’t know somewhere between a quarter and a half of the United States by the end of
17 the year, pending regulatory approval... A big factor would be if there’s some kind of federal
18 preemption for autonomous vehicles. In the absence of that, you kind of have to go on a city by
19 city or state-by-state basis... In the last couple of weeks we had started our unsupervised
20 robotaxi service to public customers in Austin... Separately, we did scale the fleet size in the Bay
21 Area and in Austin... In terms of Robotaxi vehicles carrying paid customers, I think we’re well
22 over 500 at this point between the Bay Area and Austin.”

23 7) The prior 3/10/2026 hearing was continued to 5/12/2026 to provide the Court with additional time
24 to review the pleadings.

25 8) On 5/6/2026, Petitioner filed a Supplemental Declaration. Petitioner raises for the first time in her
26 filed pleadings a request for the Court to award her reasonable attorney’s fees as a prevailing
27 party. Petitioner states, “In our Marriage Settlement Agreement, Respondent and I agreed that if
28 either of us filed an action to enforce any of the terms of the agreement, the prevailing party
29

would receive attorney's fees." Petitioner states she has paid her attorney \$12,107.74 in attorney's fees to date.

9) The Court notes that in requesting prevailing party attorney's fees, Petitioner relies on the February 2023 MSA, which was not incorporated into the Judgment filed on 7/27/2023. The May 2023 MSA (that was incorporated into the Judgment) does not contain a prevailing party attorney's fee provision and is totally silent regarding attorney's fees.

10) On 5/6/2026, Petitioner's attorney filed a declaration in support of Petitioner's request for attorney's fees. Petitioner's attorney quotes Paragraph 11.8 of the February 2023 MSA as stating: "Except as to reserved issues, the prevailing party in any action or proceeding to enforce or modify any provision of this agreement, or any provision of a subsequent judgment into which the provision is merged, shall be awarded reasonable attorney fees and costs." Petitioner's attorney states that Petitioner has incurred \$12,107.74 in attorney's fees to date and Petitioner's attorney anticipates that Petitioner will incur an additional \$1,575 in attorney's fees and costs through the preparation and filing of the Findings and Order After Hearing.

11) On 5/6/2026, Petitioner filed an Income and Expense Declaration.

12) Respondent has filed no pleadings since his 2/26/2026 Supplemental Declaration.

B. Findings and Order

1) Marriage of Iberti (1997) 55 Cal.App.4th 1434, 1439 provides: "When the language of the judgment incorporating the marital settlement agreement is clear, explicit, and unequivocal, and there is no ambiguity, the court will enforce the express language." Moreover, "Extrinsic evidence of the parties' intentions is inadmissible to vary, alter, or add to the terms of an unambiguous agreement."

2) Civil Code section 1644 provides: "The words of a contract are to be understood in their ordinary and popular sense, rather than according to their strict legal meaning; unless used by the parties in a technical sense, or unless a special meaning is given to them by usage, in which case the latter must be followed."

3) Petitioner was the victim of a traffic accident, the insurance company deemed the vehicle a total loss, and Petitioner thereafter collected an insurance payout. The Court finds this was not a "sale" as that term is ordinarily and popularly used. Moreover, Respondent has provided no extrinsic

evidence to prove that, when the parties entered into the May 2023 MSA, they intended for an insurance payout to constitute a sale. The Court finds that Petitioner did not breach the parties' agreement when she transferred title to the insurance company and accepted the insurance payout. Respondent's request for \$50,000 is denied.

- 4) Even if Tesla, Inc. has at this point released "commercially viable, SAE Level 5, full self-driving (FSD) software to the public that does not require human intervention," by the clear and unambiguous terms of the Judgment, this clause applied to the specific 2019 Tesla Model 3 (VIN ending in 9939). Respondent asks the Court to make a finding that it is possible the vehicle could have been repaired and its revenue-generating capabilities restored, and he complains that he was not given an opportunity to explore those claims. However, the May 2023 MSA does not require Petitioner to provide Respondent with that opportunity, and it is undisputed that the insurance company deemed the vehicle to be totaled. The Court finds Petitioner was not required to transfer the totaled vehicle to an LLC, and to rule otherwise would lead to an absurd result. Respondent's request that the Court find that Petitioner breached the parties' agreement by not transferring the 2019 Tesla Model 3 (VIN ending in 9939) to an LLC is denied.
- 5) The Court finds that Petitioner's request for prevailing party attorney's fees is untimely and is denied without prejudice to a properly noticed request. If Petitioner chooses to file a new request seeking prevailing party attorney's fees in this Court, Petitioner must explain: (a) why Petitioner's claim should be adjudicated in family court rather than general civil court, given that the February 2023 MSA appears to be a standalone contract and was not incorporated into the Judgment; and (b) whether the May 2023 MSA, which was incorporated into the Judgment, supersedes the February 2023 MSA.
- 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LOURDES GIL VEGA,

Petitioner

VS.

DARLENE P HORTON,

Respondent

) Case Number: FDI-22-797335

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO MODIFY SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom to address whether the Court can or should require Respondent to sell her condo in Mexico or her boat to pay for her own and Petitioner's support. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties in this matter are Lourdes Gil Vega (Petitioner) and Darlene Horton (Respondent).
Petitioner is represented by attorney Peter Furst. Respondent is represented by attorney Vanessa Hierbaum.
- 2) In an Amended Statement of Decision filed 7/10/2024, following a multi-day trial, Judge Tong found Petitioner to be a putative spouse pursuant to Family Code section 2251(a)(1). Included in the Statement of Decision are various factual findings, including that the parties met in Cuba in February 2001 when Respondent was 39 and Petitioner was 38. Although Petitioner was nervous about immigrating to the United States because "she did not have any profession, did not know the language, and would not have any friends or family in San Francisco," Respondent promised to provide for everything in the parties' relationship. Petitioner immigrated to the United States

1 and Respondent “provided for everything throughout the relationship.” In January 2006,
2 Respondent gave birth to the parties’ son Sebastian. On 10/26/2026, the parties went to San
3 Francisco City Hall and registered as “San Francisco domestic partners.” Petitioner made
4 numerous requests to get married which were rebuffed by Respondent. On 9/10/2021,
5 Respondent emailed Petitioner stating they were not actually domestic partners because their
6 domestic partnership was never registered with the State of California, which was a surprise to
7 Petitioner. Petitioner filed a Petition for Dissolution 12/5/2022.

- 8 3) At the prior 10/8/2024 hearing (per the Findings and Order After Hearing filed 11/1/2024), the
9 Court ordered Respondent to pay Petitioner \$3,000 per month in non-guideline temporary spousal
10 support. In its order, the Court noted that Respondent is living in the marital residence, Petitioner
11 lives rent-free in an in-law unit adjacent to the marital residence, and Respondent has “significant
12 expenses.” The Court also ordered Respondent to pay Petitioner \$20,000 in need-based attorney’s
13 fees and costs, finding this to be “the maximum that Respondent can pay at this juncture while
14 still maintaining expenses.” The Court further denied Respondent’s request to issue a seek work
15 order against Petitioner, who the Court noted is “age 62, with no work history.”
- 16 4) Now on for hearing is Respondent’s Request for Order filed 1/8/2026 asking the Court to set
17 spousal support at \$0 and either impute Petitioner with full-time minimum wage income or order
18 Petitioner to seek work. Respondent states she was laid off from her job with Jaguar Health and
19 her last day of work was on 9/15/2025. Respondent states she will receive a severance from
20 9/16/2025 through 1/15/2026 equal to her monthly salary prior to termination.
- 21 5) On 1/8/2026, Respondent filed an Income and Expense Declaration. Respondent states she is 64
22 years old, has a college degree, and an MD. Respondent states she receives \$249 per month in
23 pension / retirement fund payments. Respondent states she has been the owner of Horton
24 Consulting (a biotech consulting business) “off and on for 17 years” but Respondent states her
25 current income from the business as well as her income from the business over the past 12
26 months is \$0. Respondent states she has \$6,000 in cash and \$7,000 in easily saleable investments.
27 Respondent states her real property holdings are “unknown.” Respondent states that she pays
28 approximately \$30,000 in expenses, which includes \$4,958 per month for mortgage, \$2,000 per
29 month for real property taxes, \$3,000 per month for Sebastian’s college tuition, \$2,876 per month

1 for life and accident insurance, \$1,468 per month for expenses related to her boat, \$3,600 per
2 month for expenses related to a condo in Mexico, and \$6,353 per month towards a total balance
3 of \$398,763 in credit card and other debt.

4 6) Respondent's 1/8/2026 Request for Order was previously set for hearing on 3/19/2026. One day
5 prior to that hearing date, the Court received an email from Petitioner's attorney Peter Furst
6 asking the Court to consider a Responsive Declaration that Mr. Furst stated he had e-filed a
7 Responsive Declaration that same day. Mr. Furst explained that the reason for the late submission
8 was due to illness. The Court continued the 3/19/2026 hearing date to 5/12/2026 to give the Court
9 additional time to review the late submission.

10 7) The Court notes that since Mr. Furst sent his email, Petitioner's Responsive Declaration has not
11 been filed and there is no indication in the e-filing transaction record that Petitioner's Responsive
12 Declaration was submitted for e-filing.

13 8) On 5/5/2026, Respondent filed a Reply Declaration. Respondent references Petitioner's
14 Responsive Declaration (and thus it appears Respondent received and reviewed Petitioner's
15 Responsive Declaration). Respondent states that exhibits attached to Petitioner's Responsive
16 Declaration were stolen from her personal belongings and contain passwords and confidential
17 information from private investments that Respondent held confidentially. Respondent argues
18 that not a single asset Petitioner describes in her Responsive Declaration provides Petitioner with
19 meaningful liquidity or ability to pay the current support order. Respondent attached to her Reply
20 Declaration a "spreadsheet summarizing the accounts and assets Petitioner addresses in her
21 Response, with my commentary on each." Respondent states Petitioner asserts that Respondent
22 engineered her own firing as evidenced by a Performance Improvement Plan that Respondent was
23 placed on. Respondent states, "The documents Lourdes stole include only partial records related
24 to the PIP...The PIP was part of a pattern the company employed against multiple executives it
25 sought to terminate cheaply. I am aware of this because Jaguar's CEO previously asked me to
26 place one of my own top-performing employees on a PIP without justifiable cause, which I
27 refused to carry out. I subsequently became the target of the same unethical conduct. I did not
28 choose to leave my employment, and I would never voluntarily sacrifice my professional standing
29 and ability to meet my obligations to make a litigation tactic more viable." Respondent also

1 references a request by Petitioner that Respondent be ordered to seek work, and Respondent
2 states that any seek work order should apply equally to Petitioner. Respondent also asserts that
3 Petitioner and attorney Peter Furst have been provided, with supporting evidence, detailed
4 responses to many of the very allegations now repeated in Petitioner's Responsive Declaration,
5 and that Petitioner's raising these claims now is sanctionable conduct. Respondent attached as
6 Exhibit G an updated Schedule of Assets and Debts signed by Respondent on 5/5/2026 which
7 lists the following assets and debts. The Court notes that Respondent states that every single asset
8 listed in the Schedule of Assets and Debts is Respondent's separate property.

- 9 a. 850 De Haro Street in San Francisco (estimated value \$2.5 million, mortgage of
10 approximately \$1 million)
- 11 b. Condo in Mexico (estimated value \$880,000, no mortgage)
- 12 c. Piano, furniture and sound system, tools, exercise equipment, etc. (value unknown)
- 13 d. Park West Artwork (\$15,000)
- 14 e. Jewelry (\$1,000)
- 15 f. Lexus (\$3,000)
- 16 g. Honda (\$8,000)
- 17 h. Boat (\$30,000, but value would be \$70,000 if Respondent pays \$15,000 in repairs)
- 18 i. Cash Savings (less than \$2,000)
- 19 j. 3 cancelled whole life insurance policies (no cash surrender value stated)
- 20 k. Investments (less than \$1,000)
- 21 l. Retirement accounts (less than \$2,500; Respondent liquidated her 401(k) and owes a loan
22 balance)
- 23 m. "Private investment" and "privately held shares" in various partnerships and other
24 business interests (\$200,000)

25 **B. Findings and Order**

- 26 1) Because Petitioner's Responsive Declaration was not actually filed, the Court will not consider it.
27 Additionally, Petitioner's Responsive Declaration was not actually filed, the Court will not make
28 an order addressing Respondent's claim that Petitioner attached confidential documents to her
29

Responsive Declaration. However, the Court's jurisdiction to award sanctions related to Respondent's assertion that Petitioner stole documents from her is reserved.

- 2) **The parties are ordered to appear to address whether the Court can or should require Respondent to sell her condo in Mexico or her boat to pay for her own and Petitioner's support.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COREY DEROUNCE ROYAL-MILLION,

Petitioner

VS.

TONY JOHN ROYAL-MILLION,

Respondent

) Case Number: FDI-24-800431

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: FINANCIAL DISCLOSURES; REQUEST FOR ORDER: SEE
ATTACHMENT MC 030

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Corey Royal-Million (Petitioner) and Tony Royal-Million (Respondent) The parties married on 10/22/2017. The parties agree they separated in 2023 (exact date disputed), for a marriage of between 5 and 6 years. The parties have no minor children in common. Both parties are self-represented.
- 2) On 7/29/2021, in related Case No. FDV-21-815745, the Court issued a 3-year Restraining Order After Hearing for Respondent's protection against Petitioner. The restraining order expired on 7/28/2024.
- 3) On 11/21/2025, in related Case No. FDV-17-813401, the Court issued a 5-year Restraining Order After Hearing for Petitioner's protection against Respondent. The restraining order expires on 11/21/2030.
- 4) On for hearing is Petitioner's Request for Order filed 3/20/2025 asking the Court to order Respondent to file a current and complete Income and Expense Declaration, supplement his

1 financial disclosures to reflect all income earned after his initial disclosures were served
2 (including cash or informal work), produce supporting documentation sufficient to verify income,
3 and for the Court to reserve jurisdiction to impose sanctions should Respondent fail to comply
4 with ongoing disclosure obligations.

- 5 5) On 5/5/2026, Respondent filed a Responsive Declaration wherein Respondent states he filed an
6 updated Income and Expense Declaration at the beginning of 2026 (the Court notes the most
7 recent Income and Expense Declaration filed by Respondent was filed on 1/28/2026). Respondent
8 states his financial situation has not significantly changed since he “submitted [his] previous FL-
9 150 along with [his] financial disclosures.” Respondent states Petitioner has filed 5 Requests for
10 Order that have either been denied or dismissed or for which he has failed to attend the hearing.
11 Respondent states Petitioner is “using the judicial system as another vector of abuse.”
12 6) Also on for hearing is Petitioner’s Request for Order filed 4/15/2026 asking the Court to make
13 various orders regarding discovery and to issue sanctions.
14 7) On 5/5/2026, Respondent filed a Responsive Declaration providing substantive responses to
15 Petitioner’s discovery and sanction requests.
16 8) Per the Proof of Service filed 5/6/2026, Respondent’s Responsive Declarations were mailed to
17 Petitioner on 5/5/2026.
18 9) Petitioner did not file Reply Declarations.

19 **B. Findings and Order**

- 20 1) The hearing on Petitioner’s Request for Order filed 4/15/2026 is hereby continued to the
21 discovery calendar on **8/7/2026 at 1:30 PM in Dept. 405A**, to join the hearing already set on that
22 date on a separate Request for Order.
23 2) Regarding Petitioner’s Request for Order filed 3/20/2025, the orders Petitioner requests are
24 already covered by statute. Both parties are under an ongoing obligation under Family Code
25 section 2100(c) “to immediately, fully, and accurately update and augment [their financial
26 disclosures] to the extent there have been any material changes.” Respondent states he has filed
27 an updated Income and Expense Declaration and there have been no material changes since.
28 Petitioner may conduct discovery (as it appears he is already doing) if he believes a material
29 change in Respondent’s financial situation has occurred which Respondent has not disclosed. The

Court's ability to issue sanctions related to these issues is reserved. The Court makes no further orders regarding these issues at this time.

3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

QIUYAN MIAO,	)	Case Number: FDI-25-801149
Petitioner	)	Hearing Date: May 12, 2026
VS.	)	Hearing Time: 9:00 AM
JIASHENG WANG,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or via Zoom at 9:00 AM. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNA ROSE NICOLETTI WILLIAMS,

Petitioner

VS.

REAGAN BOYD WILLIAMS,

Respondent

) Case Number: FDI-25-801799

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: CHANGE OF ADVANCE OF COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jenna Williams (Mother) and Respondent Reagan Williams (Father). The parties married on 6/24/2006. Mother contends the parties separated on 6/8/2025, for a marriage of 18 years and 11 months. Father has not filed a Response to the Petition, although he has appeared at prior hearings in this matter. The parties have two children, Emerson (DOB: 9/28/2007, age 18) and Porter (DOB: 1/19/2010, age 15). Mother is represented by attorney Julia Bressman. Father is self-represented.
- 2) On for hearing is Mother's Request for Order filed 3/23/202 asking the Court to order Father to transfer to Mother \$150,000 from Charles Schwab account #2757 within 5 days "which will be treated as [an] advance of community subject to later offset." Mother states the parties' Charles Schwab account #2757 held a balance of \$1.1 million as of 8/25/2025 (near the parties' date of separation). Mother states the entirety of the funds in that account were obtained during marriage and are community property. Mother states Father has complete control and access to that account "and has used these funds at his discretion since the date of separation." Mother states

1 Father does not pay base support to her on time and has not paid Smith / Ostler support for the
2 period 9/15/2025 – 12/31/2025. Mother states she is currently living month-to-month and she
3 requires an advance from the community estate “so that I can stay ahead of my expenses.”

4 3) Per the Proof of Service filed 4/7/2026, Mother’s Request for Order was personally served on
5 Father on 4/3/2026.

6 4) Father has not filed a Responsive Declaration.

7 **B. Findings and Order**

8 1) Mother’s unopposed request for a \$150,000 advance from Charles Schwab account #2757 is
9 hereby granted. Father shall pay this amount to Mother from Charles Schwab account #2757 no
10 later than 5/17/2026 at 5:00 PM.

11 2) Mother’s attorney shall prepare the Findings and Order After Hearing.

12 3) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEVIN COFFMAN HUTCHINSON,

Petitioner

VS.

SAMUEL RAK,

Respondent

) Case Number: FDI-25-802175

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
PROPERTY CONTROL, DEED ISSUE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Kevin Hutchinson and Respondent Samuel Rak. The parties married on 5/29/2014. The parties agree they separated in 2025, for a marriage of at least 11 years.
- 2) On 12/16/2025, Respondent filed a Request for Order seeking temporary spousal support, attorney's fees, and other orders.
- 3) The hearing on Respondent's 12/16/2025 Request for Order was originally set for 2/24/2026, but was continued to 5/12/2026 by agreement of the parties.
- 4) On 2/23/2026, a Stipulation and Order was filed which provides in relevant part:
 - a. Respondent would be imputed with full-time, \$20 per hour minimum wage income.
 - b. Petitioner shall pay Respondent \$5,714 per month in temporary guideline spousal support effective 3/1/2026.

- 1 c. Petitioner shall pay Smith / Ostler spousal support on income received above his base
2 income.
- 3 d. Temporary spousal support shall be reviewed and may be modified retroactive to
4 5/3/2026 “which is the date [Petitioner]’s period of severance pay expires.”
- 5 e. Respondent shall participate in a vocational evaluation to be paid for by Petitioner.
- 6 f. Petitioner shall pay the carrying costs for the Aptos property where Respondent resides.
- 7 g. Respondent shall have temporary exclusive use of the Aptos property.
- 8 h. Petitioner shall have temporary exclusive use of the San Francisco apartment.
- 9 i. Petitioner shall pay Respondent \$10,000 for attorney’s fees and costs under Family Code
10 section 2030 “without prejudice to [Respondent]’s right to seek future need-based
11 attorney fee requests.”
- 12 j. The 2/24/2026 hearing shall be continued to 5/12/2026 “for a review of temporary
13 spousal support and any other issues raised by [Respondent]’s Request for Order.”
- 14 5) On 4/28/2026, Petitioner filed a Supplemental Declaration. Petitioner asks the Court to make the
15 following orders:
- 16 a. Effective May 3, 2026, temporary spousal support shall be modified to \$288 per month
17 payable by Sam to me, per the XSpouse calculation attached as Exhibit A (which is based
18 on Petitioner earning \$0 and Respondent earning \$500 per month).
- 19 b. Effective May 3, 2026, I am no longer ordered to continue to pay the mortgage, utilities,
20 homeowners' insurance and property taxes on 2119 Penasquitas Dr., Aptos CA ("Aptos
21 Property"), and
- 22 c. All other orders contained in the Stipulation and Order filed on February 23, 2026, not in
23 conflict with the Court’s new orders, shall remain in effect.
- 24 6) On 4/28/2026, Petitioner filed an Income and Expense Declaration. Petitioner states his prior
25 position of employment ended on 2/2/2026. Petitioner lists no current sources of income.
26 Petitioner states he has \$20,212 in cash savings, \$1,000 in investments, and \$1.5 million in real
27 and personal property assets (including retirement assets). Petitioner also states that his monthly
28 expenses total \$11,480.
- 29

1 7) On 5/1/2026, Respondent filed a Reply Declaration. Respondent asks the Court to make the
2 following orders:

- 3 a. Petitioner shall register two temporary employment agencies (immediately) and provide
4 verification to Respondent's Counsel. Petitioner shall apply for at least 10 jobs a week
5 and keep records. The records shall be provided to Respondent's Counsel monthly, at the
6 end of the month. These records must include the name and address of each potential
7 employer, the date of the job application and/or interview, the name and address of the
8 potential employer to whom a resume was sent, the name and address of all employment
9 agencies with which the Petitioner is registered and documentation to any follow up
10 efforts made with any potential employer. In the event Petitioner becomes employed, he
11 shall within 48 hours notify Respondent's counsel in writing with the name, telephone
12 number and address of the new employer, as well as the rate of pay. Failure to comply
13 may result in imputation of income to Petitioner. Any modification of support as a result
14 of Petitioner's employment shall be effective as of the date of employment.
- 15 b. Petitioner will undergo a vocational examination, and the parties will split the fees.
- 16 c. Temporary spousal support is set at \$0 without prejudice, subject to modification upon
17 Petitioner's re-employment, completion of vocational evaluation, and further financial
18 disclosure. Petitioner shall continue to pay all carrying costs for the Aptos property.
- 19 d. Parties shall exchange the following documents by June 1st: Bank account statements (all
20 accounts, individual or joint): past 3 years through present; Credit card and loan
21 statements: past 3 years through present; Brokerage account statements for all accounts
22 associated with any investment activity: past 3 years through present; Detailed brokerage
23 transaction reports, including but not limited to all records reflecting RSU grants, grant
24 agreements, vesting schedules, employer-issued equity compensation statements, and
25 proceeds of any sales, transfers, or movement of funds: past 3 years through present;
26 Complete tax documentation, including all filed returns with supporting schedules and
27 attachments: past 3 tax years; All Forms 1099 (including 1099-B, 1099-DIV, 1099-INT,
28 etc.): past 3 tax years; Form 8949 and Schedule D: past 3 tax years; Employment and
29 compensation documents from date of separation through present.

1 e. Sam will propose 3 names for the appraisal and Kevin can pick one.

2 f. Advance to Respondent of \$20,000 for attorney fees and costs from community funds
3 held in Petitioner's E*Trade brokerage account(s).

4 **B. Findings and Order**

5 1) Effective 5/3/2026 (the date Petitioner's period of severance pay expired), temporary spousal
6 support shall be set at \$0.

7 2) Effective 5/3/2026, Petitioner is no longer required to pay the carrying costs for the Aptos
8 property.

9 3) Effective immediately, Petitioner shall spend at least 30 hours per week using his best efforts to
10 seek and secure a position of paid employment. Petitioner must apply for at least 5 jobs per week.
11 Commencing June 2026, Petitioner shall provide to Respondent, through counsel, a log
12 documenting his work search efforts in the prior month. This log shall include the name and
13 address of each potential employer, the date of the job application and/or interview, the name and
14 address of all employment agencies with which the Petitioner is registered, and a statement
15 regarding any follow up efforts made with any potential employer.

16 4) In the event Petitioner becomes employed, he shall within 48 hours notify Respondent's counsel
17 in writing with the name, telephone number, and address of the new employer, as well as the rate
18 of pay. Any modification of support as a result of Petitioner's employment shall be effective as of
19 the date of employment.

20 5) If Respondent secures a position of paid employment for which he is compensated at a rate of
21 more than \$41,600 in gross annually (i.e., full-time income measured at \$20 per hour), he shall
22 within 48 hours notify Petitioner's counsel in writing with the name, telephone number, and
23 address of the new employer, as well as the rate of pay. Any modification of support as a result of
24 Respondent's new employment wherein he is compensated at a rate of more than \$41,600 in
25 gross annually shall be effective as of the date of new employment.

26 6) The Court will not set a review hearing at this time. Either party may file a new Request for
27 Order.
28
29

- 1 7) Respondent may withdraw \$20,000 from community funds held in Petitioner's E*Trade
2 brokerage account(s) to pay for attorney's fees and costs as an advance of his share of the
3 community estate.
- 4 8) Respondent's request for orders related to documents to be exchanged and an appraisal are denied
5 without prejudice as those issues are beyond the scope of the 5/12/2026 hearing.
- 6 9) All other orders contained in the Stipulation and Order filed on February 23, 2026, not in conflict
7 with the Court's new orders, shall remain in full force and effect.
- 8 10) Respondent's attorney shall prepare the Findings and Order After Hearing.
- 9 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE RAMIREZ,

Petitioner

VS.

FRANK S LEMUS,

Respondent

) Case Number: FDV-25-818357

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Michelle Ramirez (Mother) and Respondent Frank Lemus (Father) have two minor children, Eva (DOB 12/25/10, age 15) and Frank (DOB 8/12/2012, age 13).
- 2) On 6/25/2025, the Court denied Mother's request for a domestic violence restraining order against Father. On 7/31/2025, the Court ordered as week-on, week-off parenting time schedule for the parties and set a review hearing for 11/18/2025.
- 3) On 11/18/2025, the Court maintained the week-on, week-off schedule, with exchanges on Friday after school or at 5pm at UCSF Benioff if school is not in session. The Court issued various other orders, including a right of first refusal order and an order that the parenting time schedule may be modified only by mutual written agreement of the parties, with 30 days' notice or as soon as possible in the case of an emergency. The Court also ordered a Tier II interview of Eva and ordered Mother to work with Family Court Services to set up a time for Eva to be interviewed regarding her preferences as to time with each parent. The Court set a review hearing for

1 5/12/2026 and ordered the parties to file and serve update declarations at least 10 days before that
2 date.

- 3 4) On 5/4/2026, Father filed an update declaration stating that Mother “continues to unilaterally
4 modify the parenting time schedule” and “frequently leaves the children in [his] care during her
5 custodial time based on her own convenience, rather than following the Court’s orders.” He states
6 Mother does not provide the children with adequate clothing, which requires the children to
7 “transport belongings back and forth between homes in luggage.” He states Mother is also not
8 complying with the orders regarding exchange location; she frequently brings the children to
9 Father’s home, unannounced. Father does not object to spending additional time with the
10 children, but he believes that Mother’s ongoing failure to comply with orders negatively affects
11 the children's stability and wellbeing. He asks the Court to continue the prior orders and order any
12 additional relief as appropriate.

- 13 5) Mother has not filed an update declaration as of the date of the tentative ruling.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.
- 19 2) The Court finds it is in the children’s best interest to maintain all orders from the 11/18/2025
20 hearing, with the exception that the Tier II order for an interview of Eva is hereby vacated. The
21 Court has not received any information indicating that a Tier II interview is currently necessary
22 for Eva.
- 23 3) The Court admonishes Mother to follow all orders from the 11/18/2025 hearing, for example, that
24 the exchanges shall occur after school on Fridays or at 5pm at UCSF Benioff if school is not in
25 session, and that the parties may modify the parenting time schedule only by mutual written
26 agreement . Further, Mother shall ensure that the children have enough clothing and other
27 personal items while in her custody and care.
- 28 4) All other orders not in conflict with these orders shall remain in full force and effect.
29

- 1 5) If either party seeks to modify the current custody and parenting time schedule or has any other
- 2 custody or parenting time-related requests, they may file a new request for order.
- 3 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STELLIO NEDEROVIQUE,

Petitioner

VS.

JELENA SMITH,

Respondent

) Case Number: FDV-25-818547

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Stellio Nederovique and Respondent Jelena Smith. The parties are not married and they used to date. The parties do not have minor children in common. Petitioner is represented by attorney Yosef Peretz. To date, Respondent has not made an appearance in this matter.
- 2) Several hearing dates transpired between 8/15/2025 and 12/5/2025 during which Petitioner stated he was having trouble getting Respondent served. On 10/31/2025, Judge Gold made a finding that Respondent is evading service and required Petitioner to serve Respondent by email or text.
- 3) On 12/5/2025, following a hearing during which Respondent was not present, a 2-year Restraining Order After Hearing was granted for Petitioner's protection against Respondent.
- 4) On 5/5/2026, the Court granted an ex parte request by Petitioner that he be permitted to have Respondent served with the restraining order by alternate means. The Court ordered that service of the restraining order be accomplished by email and text "and to known social media account(s) via messenger or comparable method of communication."

- 1 5) Now on for hearing is Petitioner's Request for Order filed 3/18/2026 asking the Court to award
2 him \$65,645 in attorney's fees and \$7,342.10 in costs under Family Code section 6344.
3 6) There is no Proof of Service on file showing service of Petitioner's 3/18/2026 Request for Order.
4 However, the Court notes that in Petitioner's attorney's declaration filed 3/18/2026, Petitioner
5 requests that the Court authorize alternative service.

6 **B. Findings and Order**

- 7 1) The hearing on Petitioner's Request for Order filed 3/18/2026 is hereby continued to **Tuesday,**
8 **7/21/2026 at 9:00 AM in Dept. 404.**
- 9 2) At least 20 calendar days prior to the next hearing date, Petitioner shall file and serve a
10 declaration explaining why he believes (pursuant to Family Code section 6344(c)) that
11 Respondent has or is reasonably likely to have the ability to pay the fees and costs requested.
12 Petitioner shall include in his declaration statements addressing whether he believes Respondent
13 has any assets or debts; whether Respondent was employed or self-employed during their dating
14 relationship (and what profession); how much he believes Respondent was earning at the time;
15 and how Respondent covered her expenses during their dating relationship. Petitioner shall also
16 state whether he believes Respondent is currently employed or self-employed (and what
17 profession).
- 18 3) Petitioner's request for an alternative service method is hereby granted. Petitioner shall serve the
19 following documents on Respondent by email:
- 20 a. His Request for Order and all related pleadings (including the declaration the Court is
 - 21 requiring the Petitioner to file regarding Respondent's ability to pay)
 - 22 b. Copy of the Tentative Ruling Instructions
 - 23 c. Blank Responsive Declaration
 - 24 d. Findings and Order After Hearing for the 5/12/2026 hearing date.
- 25 4) Petitioner's attorney shall also send a text message to Respondent and send direct message(s) to
26 Respondent's known social media account(s) informing her of the next hearing date, informing
27 her that Court documents were emailed to her which include a motion for attorney's fees, and
28 informing her of the amount in attorney's fees that Petitioner is requesting.
29

- 1 5) In advance of the next hearing date, Petitioner shall file a Proof of Service evidencing compliance
2 with the order set forth above (and Petitioner's attorney shall attach to the Proof of Service
3 screenshots of the text and other direct messages to Respondent).
- 4 6) Petitioner's attorney shall prepare the Findings and Order After Hearing.
- 5 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
10 10 days may allow the other party to prepare a proposed order and submit it to the court in
11 accordance with CA Rules of Court, Rule 5.125(d).
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